

Bashir Ahmed v. State of U.P. — s.135 theft assessment relegated to para 6.8 objection

Allahabad High Court · Division Bench · 13 July 2022 · WRIT - C No. 13600 of 2022 · **Writ disposed; petitioner relegated to para 6.8 objection with stay of coercive action.**

HEADNOTE

Without expressing any opinion on merits, a writ challenging a committee assessment and a section 135 theft demand was disposed of with liberty to file an objection under para 6.8 of the U.P. Electricity Supply Code, 2005 within four weeks. If filed, the licensee was to decide it in accordance with law within the next four weeks after hearing. Coercive action on the demand was stayed for eight weeks or until disposal of the objection, whichever was earlier.

FACTUAL SUMMARY

Bashir Ahmed petitioned the Allahabad High Court to quash a 10 February 2022 committee assessment and demand raised by the distribution licensee, and to withdraw all actions taken against him on an allegation of theft of electricity under section 135 of the Electricity Act, 2003. After an adjournment to correct a wrongly filed annexure, counsel for the Power Distribution Corporation told the Court that the petitioner could file an objection to the demand, which would be decided in a time-bound manner.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

objection to assessment demand

HOLDING

A writ challenging a committee assessment and section 135 theft demand is disposed of without opinion on merits, with liberty to file an objection under para 6.8 of the U.P. Electricity Supply Code, 2005 within four weeks, to be decided in accordance with law within the next four weeks after hearing, and with a stay of coercive action for eight weeks or until disposal of the objection, whichever is earlier. ¶ 1

PRINCIPLE TAGS

alternative-remedy-statutory-appeal-6.8 The writ against the committee assessment and section 135 theft demand was disposed of without a merits determination by relegating the consumer to an objection under para 6.8. ¶ 1

pending-objection-to-theft-assessment-6.8 On a section 135 theft assessment demand, the Court directed a para 6.8 objection to be decided in accordance with law after hearing, and stayed coercive action for eight weeks or until disposal, whichever was earlier. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE 10.02.2022 COMMITTEE ASSESSMENT AND OF THE SECTION 135 THEFT ALLEGATION

The Court expressly declined to express any opinion on the merits. ¶ 1